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Michigan Set-Aside & Clean Slate

Agent Training Reference

A complete operational knowledge base for clearing criminal records in Michigan: the MCL 780.621 set-aside by application and the Clean Slate automatic set-aside (MCL 780.621g), with the waiting-period tiers, the One Bad Night rule, OWI and marijuana relief, eligibility, exclusions, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Michigan (the convicting court; Michigan State Police hold the criminal history)
Primary statutes	MCL 780.621 (set-aside by application); 780.621g (automatic); 780.621b (One Bad Night); 780.621e (marijuana relief)
Controlling change	Clean Slate Act (PA 187–193 of 2020) — petition expansion eff. 4/11/2021; automatic eff. 4/11/2023
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects MCL 780.621 et seq. as amended through 2024–2025 (incl. OWI relief eff. 2/2022)

VERIFY BEFORE RELYING

Michigan calls expungement a “set-aside,” and there are now **TWO** separate systems the agent must not conflate. **SET-ASIDE BY APPLICATION (MCL 780.621)** is the petition track, greatly expanded by the 2020 Clean Slate Act (effective April 11, 2021): up to three felonies and an unlimited number of misdemeanors. **AUTOMATIC set-aside (MCL 780.621g, effective April 11, 2023)** clears up to two felonies and four misdemeanors with **NO** application. They are separate programs with different limits and exclusions. A set-aside makes the conviction nonpublic, but the Michigan State Police keep a nonpublic record, and a set-aside does not automatically restore firearm rights. The agent must use the right track and verify the current MCL 780.621 text and limits before relying on any rule.

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How the agent should use this document

Michigan has two tracks and the agent routes by whether the person wants to wait for automatic relief or file now. **Application track (MCL 780.621).** A person petitions the convicting court; since Clean Slate they may set aside up to three felonies and unlimited misdemeanors, after waiting periods of 3 years (misdemeanors), 5 years (one serious misdemeanor, one OWI, or one felony), or 7 years (multiple felonies). **Automatic track (MCL 780.621g).** The Michigan State Police and courts set aside eligible convictions with no filing — up to two felonies (after 10 years) and four 93-day-or-more misdemeanors (after 7 years). Two special tracks exist: OWI first-offense relief and a marijuana set-aside (MCL 780.621e) with a rebuttable presumption. The agent should (1) identify the convictions and classes; (2) apply the One Bad Night rule to group same-transaction offenses; (3) decide application vs. automatic; and (4) screen the exclusion lists, which differ between the two tracks.

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Statutory shorthand used throughout

MCL 780.621	Set-aside of conviction(s) BY APPLICATION (the petition track)
MCL 780.621g	AUTOMATIC set-aside (Clean Slate) — no application (eff. 4/11/2023)
MCL 780.621b	“One Bad Night” — same-transaction offenses within 24 hours treated as one conviction
MCL 780.621c	Offenses NOT eligible to be set aside (the exclusion list)
MCL 780.621d	Waiting periods (3 / 5 / 7 years) and prerequisites for the application track
MCL 780.621e	MARIHUANA misdemeanor set-aside — rebuttable presumption (form MC 227a)
MCL 780.623	The nonpublic record retained by the Michigan State Police after a set-aside
SCAO / MSP	State Court Administrative Office (forms); Michigan State Police (criminal history)

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1. Eligibility rules

Two tracks, plus the marijuana and OWI specials.

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Track A — Set-aside by application (MCL 780.621)

Since the Clean Slate expansion (eff. April 11, 2021), a person may petition the convicting court to set aside:

- **Up to three felony convictions** in a lifetime (previously only one).
- **An unlimited number of misdemeanor convictions.**
- Limit: no more than ONE felony conviction for the SAME offense may be set aside if that offense is punishable by more than 10 years.

The applicant must have completed all sentence terms (incarceration, probation, parole), have no pending charges, and not be convicted of a new offense during the waiting period.

Track B — Automatic set-aside (MCL 780.621g, eff. April 11, 2023)

The Michigan State Police and courts set aside eligible convictions with NO application:

- Up to **two felony convictions**, automatically set aside 10 years after sentencing or completion of any term of imprisonment, whichever is later.
- Up to **four misdemeanor convictions** (93 days or more), automatically set aside 7 years after sentencing.
- 92-day-or-less misdemeanors are set aside 7 years after sentencing (by the MSP if in its database, otherwise by the court).
- A person with more than one assaultive conviction does not qualify for automatic set-aside.

Special tracks

- **Marijuana (MCL 780.621e):** a person convicted of a misdemeanor marijuana offense may apply (form MC 227a) to set it aside; a rebuttable presumption arises that the conduct would not be a crime today, which the prosecutor must overcome.
- **OWI (eff. Feb 2022):** a first-violation operating-while-intoxicated offense may be set aside by application 5 years after probation ends (this was newly made eligible; most traffic offenses remain ineligible).
- **Human trafficking (MCL 780.621(3)):** a victim may apply at any time to set aside an offense that was a direct result of being trafficked (form MC 227b).

AGENT GUIDANCE

Decide track by timing and limits. If the person wants relief now, or has more convictions than the automatic caps, use the application track (up to 3 felonies / unlimited misdemeanors). If they qualify and can wait, automatic set-aside (2 felonies / 4 misdemeanors) needs no filing.

Route marijuana to MCL 780.621e (form MC 227a) and OWI to the 5-year application path — both are newer carve-ins that users often don't realize exist.

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2. Waiting periods

Application-track waits run from the LATEST of sentencing, completion of probation, discharge from parole, or completion of imprisonment. Automatic-track waits run from sentencing (misdemeanors) or sentencing/release (felonies).

Track / matter	Waiting period	Measured from
Application — misdemeanor(s)	3 years	Latest sentence event
Application — one serious misd., one OWI, or one felony	5 years	Latest sentence event
Application — multiple felonies	7 years	Latest sentence event
Automatic — misdemeanor (≥ 93 days or ≤ 92 days)	7 years	Imposition of sentence
Automatic — felony	10 years	Sentencing or release, later
Marihuana (MCL 780.621e)	None stated	On application
Human trafficking victim	None	Any time after conviction

Two structural rules shape the count. First, the **One Bad Night rule** (MCL 780.621b): multiple felonies or multiple misdemeanors are treated as a SINGLE conviction for set-aside purposes if they occurred within 24 hours and arose from the same transaction — UNLESS any of them is an assaultive crime, involves a dangerous weapon, or carries a penalty of more than 10 years. Second, on the application track the applicant must have **no new conviction during the applicable waiting period** and no pending charges; a denied petition generally cannot be refiled for 3 years (MCL 780.621d(5)). The automatic track simply runs the clock from sentencing/release and checks eligibility against the database.

AGENT GUIDANCE

Apply the tiers: 3 yrs (misdemeanors), 5 yrs (one serious misdemeanor / one OWI / one felony), 7 yrs (multiple felonies) for applications; 7 yrs (misdemeanor) and 10 yrs (felony) for automatic.

Use the One Bad Night rule to collapse same-night, same-transaction offenses into one — but check the assaultive/weapon/10-year exceptions, which break the grouping.

3. Disqualifying / ineligible offenses

Some offenses cannot be set aside at all (MCL 780.621c); others are eligible by application but excluded from AUTOMATIC set-aside.

Never eligible (MCL 780.621c) — neither track

- Felonies (or attempts) punishable by **life imprisonment**.
- Most serious **sex offenses** and offenses requiring sex-offender registration; criminal sexual conduct (with a narrow pre-2015 CSC-4th exception by petition).
- **Child sexually abusive activity**; certain offenses involving minors.
- **Human trafficking** (by the offender), terrorism, and other enumerated serious crimes.
- **Traffic offenses** generally — except a first-violation OWI is now set-aside-eligible by application; most other traffic offenses, and any causing injury/death, remain ineligible.
- Felony domestic violence if the person has a prior domestic-violence misdemeanor.

Eligible by application but EXCLUDED from automatic set-aside

- **Assaultive crimes** (and a person with more than one assaultive conviction is barred from automatic relief entirely).
- **Serious misdemeanors** (as defined by statute).
- **Crimes of dishonesty**.
- Offenses **punishable by 10 or more years**.
- Any offense involving a **minor, a vulnerable adult, injury or serious impairment, or death**.

Other limits

- **Application caps:** no more than three felonies total, and only one felony for the same >10-year offense.
- **Automatic caps:** no more than two felonies and four (≥93-day) misdemeanors.
- **New conviction / pending charge** during the wait defeats an application; **refiling** after denial is barred for 3 years.
- **Out-of-state and federal convictions** cannot be set aside under Michigan law.

VERIFY BEFORE RELYING

The never-eligible list (MCL 780.621c) and the automatic-track exclusions (assaultive, serious misdemeanor, dishonesty, 10-year, minor/vulnerable-adult/injury/death) are defined by specific statutes and were amended repeatedly in the Clean Slate package and afterward. The agent must map each offense to its MCL section and apply the correct track's exclusion list — an offense can be eligible by application yet excluded from automatic relief.

AGENT GUIDANCE

Run two screens: first, is the offense never eligible (life felony, most sex offenses, most traffic)? Then, if seeking automatic relief, is it on the automatic-exclusion list (assaultive, serious misdemeanor, dishonesty, 10-year, minor/vulnerable/injury/death)?

Remember the asymmetry: assaultive and dishonesty crimes can often still be set aside BY APPLICATION even though they're excluded from automatic relief.

4. Case outcome rules

Conviction type and track drive the timing and whether a filing is needed. This table is the agent's primary routing logic for Michigan.

Conviction / matter	Track	Route	Wait / limit
Misdemeanor(s)	Application	Petition (MC 227)	3 yrs; unlimited number
One serious misd. / one OWI / one felony	Application	Petition (MC 227)	5 yrs
Multiple felonies	Application	Petition (MC 227)	7 yrs; ≤ 3 felonies
Misdemeanor (eligible)	Automatic	No filing	7 yrs; ≤ 4
Felony (eligible)	Automatic	No filing	10 yrs; ≤ 2
Misdemeanor marihuana	Application	Petition (MC 227a)	Rebuttable presumption
Human trafficking victim	Application	Petition (MC 227b)	Any time
Life felony / most sex / most traffic / assaultive×2 (auto)	—	Not eligible	Categorical

Effect of relief: a set-aside makes the conviction NONPUBLIC — it no longer appears on a public background check and the person may generally treat it as not having occurred for most purposes. But the Michigan State Police retain a NONPUBLIC record (MCL 780.623) accessible to law enforcement, courts, and for certain licensing and employment screening, and a set-aside does NOT automatically restore firearm rights (gun-rights restoration is a separate analysis under MCL 750.224f / 28.424). The relief reaches Michigan records only.

AGENT GUIDANCE

Tell users a set-aside makes the record nonpublic but not erased — MSP keeps a nonpublic copy for law enforcement and certain licensing, and it does not by itself restore gun rights.

If a record is automatic-eligible, the person may not need to file at all — have them check their MSP record (Clean Slate) before preparing an application.

5. Required forms

The application track uses State Court Administrative Office (SCAO) forms filed in the convicting court; the automatic track needs no form. Pick the form by offense type.

Application-track forms

- **MC 227 — Application to Set Aside Conviction(s):** the main form for non-marijuana convictions, with checkboxes for the 3-year (misdemeanors), 5-year (one serious misdemeanor / one OWI / one felony), and 7-year (multiple felonies) paths. Requires a certified copy of each conviction.
- **MC 227a — Application to Set Aside Marihuana Conviction(s):** for misdemeanor marihuana offenses under MCL 780.621e (rebuttable presumption).
- **MC 227b — human-trafficking victim:** for an offense that was a direct result of being trafficked (MCL 780.621(3)).
- An **Order** (set-aside / denial) accompanies the application for the judge's signature.

Supporting steps

- **Fingerprints to the Michigan State Police** with the application fee, so the MSP can verify the record and process the set-aside.
- **Certified copy of each conviction** from the convicting court, attached to the application.
- **Service** on the prosecuting attorney and the Michigan Attorney General.

AGENT GUIDANCE

Use MC 227 for ordinary convictions, MC 227a for misdemeanor marijuana, MC 227b for trafficking victims; attach a certified copy of each conviction and submit fingerprints with the fee to the MSP.

Where relief is automatic, there is nothing to file — direct the user to verify via their MSP Clean Slate record rather than preparing an MC 227.

6. Filing instructions

- 1 Get the record.** Obtain your Michigan State Police criminal history (ICHAT) and the court disposition to confirm each conviction, its class, sentence-completion dates, and whether automatic set-aside has already applied.
- 2 Choose the track and confirm eligibility.** Application vs. automatic; the waiting period; the One Bad Night grouping; the application caps (≤ 3 felonies) or automatic caps (≤ 2 felonies / 4 misdemeanors); and the exclusion lists.
- 3 Complete the form** (MC 227, MC 227a, or MC 227b) and attach a certified copy of each conviction; sign before a clerk or notary.
- 4 File in the convicting court** and submit fingerprints with the fee to the Michigan State Police (the application processing fee is set by statute, commonly around \$50).
- 5 Serve** the prosecuting attorney and the Michigan Attorney General; either may object.
- 6 Hearing.** The court typically holds a hearing (for marijuana, a hearing follows if the prosecutor contests the presumption); the judge weighs the circumstances and the public interest.
- 7 Order and processing.** If granted, the court enters the set-aside Order and forwards it to the Michigan State Police, which makes the conviction nonpublic while retaining the MCL 780.623 nonpublic record. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the convicting court — file where each conviction was entered; convictions in different courts need separate applications.

The fingerprint + MSP step and service on both the prosecutor and the Attorney General are easy to miss; build them into the checklist.

7. Court-specific quirks

- **Two tracks, different limits.** Application (≤ 3 felonies / unlimited misdemeanors) vs. automatic (≤ 2 felonies / 4 misdemeanors). They run in parallel — a person can file an application for convictions the automatic system won't reach.
- **One Bad Night (MCL 780.621b).** Same-transaction offenses within 24 hours count as a single conviction — unless assaultive, weapon-involved, or >10 -year, which break the grouping.
- **Assaultive/dishonesty asymmetry.** These can often be set aside by application but are excluded from automatic relief; more than one assaultive conviction bars automatic relief entirely.
- **OWI carve-in (Feb 2022).** A first-offense OWI became set-aside-eligible by application 5 years after probation ends — a recent and frequently unknown change.
- **Marijuana presumption (MCL 780.621e).** A misdemeanor marijuana set-aside carries a rebuttable presumption the conduct wouldn't be a crime today; the prosecutor bears the burden to rebut.
- **MSP keeps a nonpublic record.** Set-aside makes the conviction nonpublic, not destroyed; law enforcement and certain licensing still see it (MCL 780.623).
- **Firearms not auto-restored.** A set-aside does not by itself restore gun rights; restoration is a separate process (MCL 750.224f / 28.424).
- **3-year refiling bar.** A denied application generally cannot be refiled for 3 years unless the court allows earlier.

AGENT GUIDANCE

Lead with the MSP Clean Slate check: many users are already (or soon will be) automatically cleared and don't need to file.

Surface the OWI and marijuana carve-ins — they're recent and users rarely know a first OWI or an old marijuana misdemeanor can now be cleared.

8. Fee information

Item	Amount	Note
Application processing fee (MSP)	~\$50	Statutory fee with the fingerprint submission
Automatic set-aside	\$0	No application, no fee
Marihuana set-aside (MC 227a)	Application fee	Rebuttable-presumption process
Certified copy of conviction	Court fee	One per conviction, attached to the application
Michigan State Police ICHAT record	ICHAT fee	To confirm record / automatic status
Attorney fees (if represented)	Varies	Not required; legal-aid and county expungement clinics assist

Michigan is relatively low-cost. Automatic set-aside is free. The application track carries a statutory Michigan State Police processing fee (commonly around \$50) submitted with the fingerprints, plus the cost of a certified copy of each conviction and any ICHAT record check. Many counties and nonprofits run free expungement clinics (e.g., through Michigan Works! and county conviction-integrity units) that help with the forms and fees.

AGENT GUIDANCE

Quote the ~\$50 MSP processing fee for applications and note automatic set-aside is free; point users to county expungement clinics for free help with the forms.

Have users pull their ICHAT record first — it confirms eligibility and whether automatic relief has already cleared the conviction, avoiding an unnecessary fee.

9. Criminal history (MSP) request process

Confirming the record first establishes each conviction's class (which sets the track and wait), the sentence-completion dates, and whether automatic set-aside has applied.

A. Statewide history — Michigan State Police (ICHAT)

- The Michigan State Police maintain the state criminal history; a person can run an ICHAT (Internet Criminal History Access Tool) search for a fee.
- The MSP also administer the Clean Slate automatic set-aside and retain the MCL 780.623 nonpublic record after any set-aside.

B. Court records — the convicting court

- The convicting court issues the certified copy of each conviction required for an application and is where the application is filed.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Michigan, the FBI fingerprint-based Identity History Summary is the federal equivalent; a Michigan set-aside reaches Michigan records only.

VERIFY BEFORE RELYING

MSP / ICHAT request methods and fees, and the Clean Slate automatic-processing status, can change. The agent should verify the current MSP request process and fee, and whether automatic set-aside has reached the user's record, at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the ICHAT record as step one — it fixes the conviction class and dates and shows what Clean Slate already cleared. Direct users to the convicting court for the certified conviction copy and filing.

10. Sample applications and completed examples

Michigan relief is filed on SCAO forms in the convicting court (or happens automatically). The examples below show structure and key recitals. Names, dates, and identifiers are fictional and illustrative.

Example A — MC 227 Application to Set Aside Conviction(s), one felony (5-year)

STATE OF MICHIGAN, 3rd CIRCUIT COURT – WAYNE COUNTY
 PEOPLE OF THE STATE OF MICHIGAN v. ANDRE L. CARTER
 Case No. 19-001234-FH (Form MC 227)

APPLICATION TO SET ASIDE CONVICTION(S) (MCL 780.621)

1. I request that the court set aside the conviction(s) below.
 I consent to use of the nonpublic record under MCL 780.623.
2. Conviction: Larceny in a building (felony), MCL 750.360,
 convicted 03/14/2019.
3. [X] I am requesting only ONE felony to be set aside. At least
 FIVE years have passed since the sentence was imposed or
 discharge from imprisonment/probation/parole, whichever is
 later (completed 03/14/2020).
4. I have not been convicted of any criminal offense during the
 waiting period and have no criminal charges pending.
5. This is not a conviction excluded by MCL 780.621c (not a life
 felony, sex offense, or other ineligible offense).
6. A certified copy of the conviction is attached; fingerprints
 and the fee have been submitted to the Michigan State Police.
 I swear the statements above are true. (Served on the
 prosecuting attorney and the Attorney General.)

Examples B, C & D — Other pathways

B. AUTOMATIC SET-ASIDE (MCL 780.621g):

An eligible felony is set aside automatically 10 years after
 sentencing/release; up to FOUR eligible (≥ 93 -day) misdemeanors
 7 years after sentencing. No application -- the MSP and courts
 process it. Verify via your ICHAT record. (Excludes assaultive,
 serious misdemeanor, dishonesty, 10-year, and minor/vulnerable/
 injury/death offenses.)

C. ONE BAD NIGHT (MCL 780.621b):

Two felonies committed within 24 hours arising from the same
 transaction count as ONE conviction for set-aside -- unless one
 is assaultive, weapon-involved, or punishable by >10 years.

D. MARIHUANA (MCL 780.621e, form MC 227a):

A misdemeanor marihuana conviction may be set aside by
 application; a rebuttable presumption arises that the conduct
 would not be a crime today, and the prosecutor must rebut it.

Order on Application

The MC 227 application is paired with an Order. If granted, the Order sets aside the conviction(s) and directs the Michigan State Police to make the conviction nonpublic while retaining the nonpublic record under MCL

780.623; if denied, the Order states the reasons and the applicant generally may not refile for three years.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Michigan's set-aside statutes and common practice and is not legal advice. Michigan's Clean Slate Act (PA 187–193 of 2020) expanded petition eligibility (eff. 4/11/2021) and created automatic set-aside (eff. 4/11/2023), with OWI and marijuana changes afterward; the agent must verify the current text of MCL 780.621 et seq., the eligible/excluded offense lists for each track, the SCAO forms, MSP request processes, and current fees before relying on any rule here.